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General Comment

Actions taken by machine learning and "artificial intelligence" companies like OpenAI, Anthropic, and others to train their models has massively damaged the public by outright stealing data to which they have no right. These actions cannot be allowed, nor are they necessary in order to develop cutting-edge models to keep the United States competitive in the world.

The concept of "fair use" involves several pillars - the nature of the copyrighted work, the amount of the work used in relation to its whole, the effect of the potential market for the original work, and lastly the purpose and character of the use, including whether it is of a commercial nature. In their collection of data, OpenAI and similar companies took data in its entirety, that was never expected nor intended to be used in this manner, and created COMMERCIAL products that damage the impact of the original. These actions could be defended when they were pure research projects, but once they became commercial products, the actions cannot be defended as "fair use".

This wholesale collection of data is not needed in order to keep American models competitive in the world. Companies like DeepSeek have demonstrated massive advances in model development by using their resources (in this case compute) in a smarter manner. The same thing can in all likelihood be done with data - use public-domain and legitimately-licensed data in a smarter way, rather than just throwing all data into their models. This would likely result in more efficient use of compute resources, further enhancing America's position in the machine learning industry.

Instead of the massive theft of data, companies like OpenAI, Facebook, and others MUST be required to properly license all data that they use, or stick to public domain sources. There should also be limits to how much of any one work can be used - no more than 10% of any given work. Furthermore, any data that was used should be compensated to the original author, in a monetary manner.

These changes would resolve the theft issues while keeping America competitive.